Now 157 countries:
Twelve data privacy laws in 2021/22

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(2022) 176 *Privacy Laws & Business International Report* 1, 3-8

Despite the covid pandemic, countries across the globe have continued to enact data privacy laws. At the start of 2021, 145 countries had done so,[1] but in the year since then a further twelve countries have enacted such laws, giving a total of 157 by mid-March 2022. As has become familiar, most of these laws are influenced substantially by the EU's GDPR, but with many variations in such implementations. The Table below provides a summary, followed by a brief analysis of key features and sources for each law. Trends which may be emerging from these new laws are noted.

Table of new countries with data privacy laws 2021-22

Country	***Title of law***	***Data protection authority***	***Region***
Rwanda	Law Relating to the Protection of Personal Data and Privacy 2021	National Cybersecurity Authority	Africa
Zimbabwe	Data Protection Act 2021	Postal and Telecommunications Regulatory Authority	Africa
Zambia	Data Protection Act 2021	Data Protection Commissioner	Africa
Sri Lanka	Personal Data Protection Act 2022	Data Protection Authority of Sri Lanka	Asia
British Virgin Islands	Data Protection Act 2021	Information Commissioner	Caribbean
Belize	Data Protection Act 2021	Data Protection Commissioner	Caribbean
Mongolia	Law on Protection of Personal Information	National Human Rights Commission & Communications and Information Technology Authority	Central Asia
Belarus	Law on Personal Data Protection 2021	National Personal Data Protection Center	Europe
Ecuador	Organic Law on Protection of Personal Data 2021	Superintendency of Protection of Personal Data	Latin Am
Saudi Arabia	Personal Data Protection Law	Data & Artificial Intelligence Authority	Mid-East
United Arab Emirates (Federal)	Law regarding personal data protection 2022	UAE Data Office	Mid-East

[1] G. Greenleaf 'Global Data Privacy Laws 2021: Despite COVID Delays, 145 Laws Show GDPR Dominance' (2021) 169 Privacy Laws & Business International Report, 1, 3-5; G. Greenleaf 'Global Tables of Data Privacy Laws and Bills (7th Ed, January 2021)' (2021) 169 Privacy Laws & Business International Report. 6-19. There may be 146: the existence of Comoros' alleged data privacy law of June 26 2014 remains unconfirmed.

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Oman	Personal Data Protection Law 2022	Ministry of Transport, Communications and Information Technology	Mid-East

Twelve new national laws

The twelve new laws come from most regions of the globe: Central Asia, Latin America, the Caribbean, Africa, Asia and the Mid-East, plus the last state in Europe. Brief details follow of the laws, and where more details can be found.

Ecuador now has the 13th law in the 22 **Latin American** countries.

Ecuador– Organic Law on Protection of Personal Data 2021 (Latin America)

In May 2021 Ecuador's *Organic Law on Protection of Personal Data* was enacted by its National Assembly, and after receiving no objection from the President, was gazetted and became law. The law established an independent Superintendency of Protection of Personal Data, to enforce the law and maintain a national registry of data controllers. The law has strong GDPR similarities:[2] data subject rights including data portability, the 'right to be forgotten' and controls on automated processing; extra-territorial scope similar to the GDPR ('white list' and 'appropriate safeguard' provisions, but not a local representation requirement); and requirements for many organisations to have a DPO. Administrative penalties for breaches can range from 3% to 17% of the previous year's revenue of an organisation. One trigger for the law was a 2019 data breach affecting nearly all Ecuadorians, where considerable amounts of personal data were stored outside Ecuador without the authorization of data subjects.[3]

El Salvador's Assembly also passed a *Law on the Protection of Personal Data and Habeas Data* in April 2021, but it was vetoed on 7 May 2021 by the President on the grounds of deficiencies in its consistency with other aspects of El Salvador's laws, and lack of expertise in the proposed data protection authority.

Two more jurisdictions in the **Caribbean** have enacted new laws, bringing the total to 16 of the 29 Caribbean states.

British Virgin Islands– Data Protection Act 2021 (Caribbean)

The British Virgin Islands (BVI) are a British Overseas Territory located in the Caribbean and part of the West Indies. The total population of BVI is under 40,000, but with a high per capita GDP of over USD 35,000. BVI is a parliamentary democracy with a single elected house. The *Data Protection Act 2021* was enacted, by being gazetted, on 13 April 2021, to come into force on a date or dates to be appointed by the Minister. It applies to government activities, but otherwise only applies to the processing of any personal data in respect of commercial transactions, so non-commercial activities (clubs etc) are exempt. Local experts consider the law to be relatively 'light touch', in comparison with other Caribbean laws.[4] It includes modest sets of rights and controller ('user') obligations. The Minister may prescribe that 'any other personal data' may be 'sensitive personal data'. The Act establishes an Information Commissioner, but with no explicit statement of independence. Maximum fines of USD $250,000 are now modest compared with some other Caribbean jurisdictions**.** A direct right of

[2] Rafael S. Barona 'Ecuador's draft Data Protection Bill' 5 March 2021 *iapp Privacy Tracker* <https://iapp.org/news/a/ecuadors-new-data-protection-law/>

[3] Barona *ibid*

[4] Bartlett Morgan 'Data Protection: BVI has entered the chat!' 1 April 2021 bartlettmorgan.com website

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appeal to the Eastern Caribbean Supreme Court is available for persons aggrieved by decisions of the Commissioner.

Belize – Data Protection Act 2021 (Caribbean)

Belize is considered to be a Caribbean country, although it is located on the north-eastern coast of Central America, bordering Mexico to the north, and the Caribbean Sea to the east. It is the only Central American country where English is the official language and is a member of the Commonwealth, and 'it is considered a tax haven'.[5] With a population of less than 500,000 and a per capita GDP under USD 5,000, Belize is a small fish.

The Belize *Data Protection Act*, No. 45 of 2021 was enacted by its National Assembly and assented to by the Governor-General on 29 November 2021. The Act creates an office of Data Protection Commissioner. It is considered to draw heavily for inspiration on Barbados' Data Protection Act, but without the obligation for data controllers to be registered.[6] Some unusual features of the Act include: the inclusion of financial records as 'sensitive information'; the exemption of 'small businesses' from compliance with the Act; and the exemption of cloud storage from the data export provisions. Other more usual features include data breach notification and demonstrable accountability requirements.

Since September 2021, three comprehensive data privacy laws have been enacted in the **Middle East**, in Saudi Arabia, the United Arab Emirates and Oman, so that 11 of the 14 states of the region now have such laws. These three countries share land borders, so most of the Arabian Peninsula now has comprehensive data privacy laws.

Saudi Arabia– Personal Data Protection Law 2021 (Mid-East)

The *Personal Data Protection Law* was adopted by Royal Decree on 16 September 2021, and will take effect on 23 March 2022, with controllers having a year to comply. It is a comprehensive law (public and private sectors). The law is considered to be generally 'in line with international data protection laws' and in particular with many aspects of the EU's GDPR.[7] Its full implications will not be clear until Executive Regulations are issued.

The law has GDPR-like provisions concerning purpose limitation, limited exceptions for non-consensual processing, data minimisation, most of the data subject's rights (but not data portability, or limits on automated processing), strict data breach notification requirements; and impact assessments. However, many aspects differ from the GDPR, including limited extra-territoriality benefiting Saudi citizens only; a non-independent data protection authority (initially, the Saudi Data & Artificial Intelligence Authority); registration of controllers; and application to deceased persons. It has a strict approach to data exports, generally limiting them to where standards not less than those in Saudi law will apply, and approval to export is also obtained from the Authority. The Authority may decide to issue a 'white list' of countries providing an acceptable level of protection. The Authority may issue fines for breaches of up to USD 2.6M, or award compensation.

United Arab Emirates – Law regarding personal data protection 2022 (Mid-East)

The UAE *Federal Decree Law No. 45 of 2021 regarding personal data protection* was issued on 2 January 2022, but controllers and processors have six months to comply. This federal law

[5] Wikipedia: Belize

[6] Bartlett Morgan 'Belize's proposed Data Protection Law adds unique spin to the familiar' bartlettmorgan.com website

[7] Dino Wilkinson and Masha Ooijevaar 'Saudi Arabia issues its first standalone data protection law' (2021) 173 *Privacy Laws & Business International Report*, 1, 3-5.

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will operate alongside but not replace the free trade zone laws of Dubai and Abu Dhabi. Regional experts consider that it 'reflects international data protection principles and requirements, particularly [the EU GDPR]'.[8] Among the stronger obligations in the law are requirements for Data Protection Officers and data protection impact assessments. Data subject rights include data portability and rights to object to automated decision-making. A separate law (Federal Decree Law No. 44 of 2021) establishes the UAE Data Office to supervise the law, but does not make it independent. Penalties for breaches are not specified in the law - this will occur in regulations.

Oman – Personal Data Protection Law 2022 (Mid-East)

The Sultanate of Oman is the oldest continuously independent state in the Arab world. Its population of nearly five million has a per capita GDP of USD 47,000, making it a high-income country. Royal Decree No. 6 of 2022 promulgated the *Personal Data Protection Law 2022* (PDPL, on 9 February 2022. The Ministry of Transport, Communications and Information Technology (MTCIT), which is designated as the data protection authority under the law, will also issue executive regulations to expand on the 32 articles of the law (including on data exports). The law will come into effect a year after its promulgation. The law is as yet only available in Arabic, but commentary is available from regional law firms.[9]

Although the law does in theory cover both the public and private sectors, there is a lengthy list of exclusions from its scope, including acts by state bodies or public authorities within their legal competence, protection of various state interests and private interests, and data which is available to the public in a manner which is not contrary to the PDPL. The law requires explicit consent to any processing of personal data, unlike other laws (for example the GDPR) that make provision for non-consensual processing. However, where processing falls within any of the excluded categories, it appears that the law does not apply at all.[10] The exclusions will therefore play to some extent a similar role to non-consensual processing. The rights of data subjects include many that are found in laws such as the GDPR, including rights to rectify, update or block, rights of erasure, access, data portability, and rights of data breach notification (with MTCIT also to be informed). The MTCIT can investigate complaints and has a variety of enforcement tools. Administrative fines may reach a maximum of OMR 500,000 (USD 1.3M).

In addition, **Kuwait**'s Communication and Information Technology Regulatory Authority promulgated the Data Privacy Protection Regulation in June 2021. However, unlike the Middle East laws described above, this is not a 'data privacy law' for the purposes of my global Table, because it does not have sufficient scope in either the private or public sectors. It is limited to a controller 'who provides communications and information technology services' and only 'when it relates to processing activities linked to transmission of advertising or marketing material or monitoring the behaviours and tendencies of data owners'. It is therefore only a sectoral law, but one which imposes significant obligations on those service providers within its scope.[11]

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[8] Dino Wilkinson and Masha Ooijevaar 'United Arab Emirates federal data protection law in force' (2022) 175 *Privacy Laws & Business International Report*, 1, 3-5.

[9] Taimur Malik and Dino Wilkinson 'Data Protection Law issued in Oman' 15 February 2022, Clyde and Co website <https://www.clydeco.com/en/insights/2022/2/data-protection-law-issued-in-oman>

[10] Malik and Wilkinson ibid

[11] N Ihab 'Kuwait adopts data protection regulation' (2022) 176 *Privacy Laws & Business International Report* 25-27

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Mongolia is the last country in **Central Asia** to enact a data privacy law. The other five countries, all previous republics of the USSR, have done so in recent years. Kazakhstan amended its law in 2021 to include provisions on data breach notification and clarify data localisation.

Mongolia – Law on Protection of Personal Information 2021 (Central Asia)

Mongolia is a landlocked country between China and Russia which has become a multi-party democracy since 1989. It has a population fewer than 3.5 million and per capita GDP of under USD 15,000. In January 2022 the enactment was announced of the *Law on Protection of Personal Information*, to enter into force on May 1, 2022.[12] The law covers the public sector, but its application to the private sector remains to be ascertained.[13] The law defines terms such as personal privacy, sensitive information (including genetic and biometric data, information about sex life and sexual orientation, and medical records), controller, processor, based on the standards of other countries. It also regulates conditions for the collection, processing and use of sensitive data and their use for historical, scientific research and analysis purposes. The law also regulates surveillance by audio and video recording equipment in public places. The law is part of package of 'e-Mongolia' laws enacted to accelerate the development of digital government in Mongolia which also includes public information and open data laws, a cybersecurity law and a digital signature law.[14]

Sri Lanka – Personal Data Protection Act 2022 (Asia)

In **South Asia**, Sri Lanka has won the race (against India and Pakistan) to enact a modern, if flawed, data privacy law. After four revised versions,[15] Sri Lanka's Personal Data Protection Bill[16] finally made it to the Ministerial Consultative Committee on Technology on 8 March 2022, where it was endorsed. It was then presented to Parliament on 9 March where it was given all readings and enacted on the same day, with amendments, being passed without a vote. Extensive amendments (29 pages) were proposed but it is not yet known which were adopted. The Bill (as introduced) requires that the role of Data Protection Authority of Sri Lanka must be given to an existing government body, not a new and independent body. This deficiency, plus the perceived weakness of protections for the media and academics, and the fact that this Act will override all other laws, including the Right to Information Act, has received wide criticisms from Sri Lankan and international media and free speech organisations.[17]

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[12] Misheel Lkhasuren 'Legal environment has been created for e-transition in Mongolia' UB Post http://theubposts.com/legal-environment-has-been-created-for-e-transition-in-mongolia/

[13] Little information is yet available in English or Russian. Details will be provided In a subsequent article.

[14] B. Bolor-Erdene 'How To Do Digital Government: Experiences From E-Mongolia' 8 February 2022, Urbanet <https://www.urbanet.info/digital-governance-mongolia/>

[15] The first three versions are reviewed in G. Greenleaf, Graham 'Pakistan's and Sri Lanka's data privacy Bills move forward' (2021) 173 *Privacy Laws & Business International Report*, 24-27 and earlier articles cited therein.

[16] The latest pre-parliamentary Bill is the Personal Data Protection Bill in the November 19 2021 Government Gazette <http://documents.gov.lk/files/bill/2021/11/152-2021_E.pdf>. The same Bill was introduced into Parliament on 20 January 2022 <https://www.parliament.lk/business-of-parliament/acts-bills#current>.

[17] **Editorial 'Sri Lanka's Personal Data Protection Bill Leads To Public Uproar' *Colombo Telegraph*, 9 March 2022** <https://www.colombotelegraph.com/index.php/sri-lankas-personal-data-protection-bill-leads-to-public-uproar/> ; Access Now *Policy brief: Nine steps to protect our data and privacy in Sri Lanka* February 2022 https://www.accessnow.org/cms/assets/uploads/2022/02/Policy_Brief_Sri_Lanka_Data_Protection_Bill_February_2022.pdf; Transparency International Sri Lanka Branch *Legislative Brief: Personal Data Protection Bill 2021* 1 February 2021 <https://www.tisrilanka.org/wp-content/uploads/2021/07/TISL-Legislative-Brief_Personal-Data-Protection-Bill_13.07.2021.pdf>

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Amendments proposed[18] included creation of a Board of Directors of 5 to 7 eminent persons; licensing of categories of controllers and processors; and payment of compensation for harm resulting from breaches of the Act. The final Act will be reviewed in a later issue of this journal.

Three more **African** countries – Rwanda, Zimbabwe and Zambia – have enacted data privacy laws, bringing to 35 of the 55 African countries with such laws. The three laws give a clear illustration of the diversity of ways in which data privacy is implemented in Africa, while still maintaining strong influences of the EU GDPR.

Rwanda – Law Relating to the Protection of Personal Data and Privacy 2021 (Africa)

Law No. 058/2021 of 13 October 2021 *Relating to the Protection of Personal Data and Privacy* came into force on its publication in the Official Gazette two days later. It is available from the Ministry of Justice website.[19] Enforcement powers are given to the National Cybersecurity Authority (NCSA), with transition to enforcement over two years.[20] Legitimate data processing is defined in terms similar to the GDPR. Data subject rights include, as well as broad rights of access, objection and restriction, less usual rights such as data portability, restrictions on decision-making based on automated processing, and a right to designate an heir to personal data. The obligations of data controllers and processors can include to carry out data protection impact assessments, to appoint a data protection officer (DPO), and to inform data subjects of data breaches. Data exports can be based on a number of grounds, including the NCSA being satisfied with appropriate safeguards, but there is no provision for jurisdictions being held to provide adequate protection. However, NCSA could add additional grounds, including approving standard contractual terms. Data localisation (storage in Rwanda) is required unless the controller or processor has a registration certificate permitting storage outside Rwanda. The NCSA will maintain a register of data controllers and processors and can cancel registrations for failure to comply with the law. Failure to comply with some (but not all) provisions of the law can result in administrative fines up to USD 5,000 or 1% of global turnover in the previous year. The NCSA can add other fines by regulations. Compensation may be claimed through court processes. Rwanda's law is therefore a quite strong implementation of the GDPR's approach, except in relation to data localisation and registration.

Zimbabwe – Data Protection Act 2021 (Africa)

The *Data Protection Act* was enacted in December 2021. It creates the functions of a Data Protection Authority (DPA) but gives responsibility for those functions to the Postal and Telecommunications Regulatory Authority (POTRAZ). It also creates a Cyber Security and Monitoring of Interceptions of Communications Centre (CSMC), relevant to the cybersecurity aspects of the law. The Act includes higher standards for the processing of sensitive data, and limited sets of obligations on data controllers (s. 13), and limited rights for data subjects (s. 14). Some more modern elements are included such as data breach notification, categories of processing requiring specific authorisation from the DPA, demonstrable accountability, and limits on decisions based on automated processing. Data exports are subject to requirements of an adequate level of protection in the recipient country, with such adequacy to be determined

[18] Personal Data Protection Bill (Sri Lanka) *Amendments to be moved at the committee stage of the Bill*.

[19] Rwanda's *Law Relating to the Protection of Personal Data and Privacy* <https://www.minijust.gov.rw/fileadmin/user_upload/Minijust/Publications/Official_Gazette/_2021_Official_Gazettes/October/OG_Special_of_15.10.2021_Amakuru_bwite.pdf>

[20] Ministry of ICT and Innovation (Rwanda) Press Release 21 October 2021 'Rwanda passes new law protecting personal data' <https://www.minict.gov.rw/fileadmin/user_upload/minict_user_upload/Documents/Press_Release/211021_PRESS_RELEASE_Rwanda_s_New_Data_Protection_Law_ENGLISH.pdf>

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(it seems) by the DPA establishing a 'black list' of circumstances where transfers are not authorised, subject to directions by the Minister responsible for the CSMC. Other methods of transfer are also specified, but without the inclusion of Standard Contract Clauses or intergroup transfers. Breaches of the Act can result in convictions leading to fines or imprisonment, but other means of enforcement are lacking. The Act also includes cybercrime offences. The Media Institute of Southern Africa (MISA) Zimbabwe has made considerable criticisms of the law, while welcoming its existence.[21]

Zambia – *Data Protection Act 2021* (Africa)

The *Data Protection Act 2021* establishes an Office of Data Protection Commissioner within the telecommunications Ministry. In addition to the usual functions of a DPA, it is to register controllers and data processors, and licence data auditors. The Data Protection (Registration and Licensing) Regulations, 2021 issued in May 2021, are mainly for this purpose. Processing data without the necessary permit is a serious offence (imprisonment for up to five years), and contraventions of the Act or orders of the Commissioner may lead to revocation or suspension of permits. The Commissioner's qualifications are specified, but independence not guaranteed. Inspectors are also to be appointed, with unusually broad powers to enter premises, inspect records, detail property, conduct arrests etc. Exemptions from the Act (Part VII) are limited.

The principles relating to processing personal data (Part IV) include grounds for legitimate processing (including legitimate interests), strong protections for sensitive personal data, and minimality in processing (limits on collection, use and disclosure). Duties of data controllers and processors (Part VIII) include data protection impact assessments, appointment of DPOs where the Commissioner requires, data breach notification to the Commissioner and the data subject and demonstrable accountability. Other GDPR obligations are not included. Corporations breaching these requirements of Parts IV or VII may be liable on conviction to a penalty up to 2% of turnover (presumably within Zambia) of the previous financial year. The rights of data subjects (Part IX) are comprehensive, including limits on automated processing, and data portability. They are enforced through complaints to the Commissioner (which may be against any breach of the Act), with a right of appeal to the High Court. Compensation for damage caused by breaches of data subject's rights is through court proceedings. Data export and localisation provisions (Part X) are complex and unusual. In default, all processing and storage must be on a server or data centre located in Zambia, unless the Minister prescribes 'categories of personal data' that may be stored elsewhere (but not for sensitive data). Conditions allowing exports of personal data follow, including for white lists based on adequate protection and effective enforcement (decided by the Minister) and standard contracts or intragroup schemes (approved by the Commissioner or the Minister). Except for its heavy reliance on licensing provisions, use of convictions rather than administrative fines, and its data localisation provisions, Zambia's law is strongly influenced by the EU GDPR.

Belarus – *Law on Personal Data Protection 2021* (Europe)

Belarus is the last state in Europe to enact a data privacy law, an appropriate result for one of the most authoritarian and undemocratic regimes on the continent, and the only state which is not a member of the Council of Europe (mainly because of its lack of democracy). Russia's invasion of Ukraine from Belarus territory also puts into question whether it can be any longer regarded as an 'independent' state. The Belarus Law on the protection of personal data was signed into law on 7 May 2021 and came into effect on 15 November 2021. The National Personal Data Protection Center was also established by Presidential Edict No. 422 dated 28

[21] MISA 'Analysis of the Data Protection Act' 6 December 2021 <https://zimbabwe.misa.org/2021/12/06/analysis-of-the-data-protection-act/>.

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October 2021, but with no indication that it is an independent body. It will handle complaints and administer approval of data exports. The Law is, on paper, said to be similar in many respects to the GDPR, including data subject rights limiting decisions made solely on the basis of automated processing, and the right to data portability.[22] Enforcement is relatively light, such as fines limited to USD 2,264.

The inclusion of Belarus underlines that, while these eleven laws meet the minimum formal requirements for a data privacy law[23] on their face, this says nothing about whether the laws are effectively enforced, or about the data surveillance context in which such laws exist and which may largely nullify their potential benefits.

Revised Acts, and Bills for revised Acts

Some of the most important data privacy legislation enacted in 2021 does not appear in the above Tables. For example, in 2021 China[24] revised its existing patchwork of laws into its comprehensive *Personal Information Privacy Law*. In addition, India[25] and Indonesia[26] have comprehensive Bills, not yet enacted, to replace their existing sub-standard non-comprehensive laws. These are the world's three largest countries by population. Other countries enacted significant updates to existing laws in 2021, including Vietnam,[27] South Korea, Hong Kong, Kazakhstan, Russia Andorra, Abu Dhabi, Uzbekistan, Cayman Islands and various EU member states (to implement parts of the GDPR).

Emerging trends in 2021-22

From the eleven new data privacy laws distributed globally and the significant updates to laws in 2021, some interesting features, possibly emerging trends, include:

- The EU GDPR (incorporating its predecessor, the 1995 DPD) is clearly the *global template* on which most other countries new laws are based, to a high extent (Ecuador, Rwanda, Zambia) or lesser extent (Belize, BVI, Oman, Mongolia, Zimbabwe).
- Most of the new laws still fail to create genuinely *independent* data protection authorities (at least BVI, Zimbabwe, Rwanda, Oman, UAE, Saudi Arabia, Belarus, Sri Lanka), although all of these laws do create or nominate some specialised enforcement body.
- *Extra-territorial* jurisdiction has become common in a few years but is often implemented differently from the GDPR (Ecuador, UAE, Saudi Arabia, Sri Lanka, China).
- Some new principles originating in the GDPR are already very commonly enacted outside the EU, like data breach notification, but others which used to be rare are

[22] Caseguard 'The PDP, A New Standard for Data Privacy Rights in Belarus' 27 October 2021 <https://caseguard.com/articles/the-pdp-upholding-data-privacy-rights-in-belarus/>

[23] For the standards applied, see a summary in G. Greenleaf 'Global Data Privacy Laws 2015: 109 Countries, with European Laws Now a Minority' (2015) 133 *Privacy Laws & Business International Report*, February 2015.

[24] G. Greenleaf 'China's completed Personal Information Protection Law: Rights plus cyber-security' (2021) 173 *Privacy Laws & Business International Report*, 20-23

[25] G. Greenleaf 'Report keeps India's DP Bill partly within GDPR orbit' (2022) 175 *Privacy Laws & Business International Report* 1, 6-9

[26] G. Greenleaf and A. Rahman. 'Indonesia's DP Bill lacks a DPA, despite GDPR similarities' (2020)164 *Privacy Laws & Business International Report* 1, 3-7

[27] G. Greenleaf 'Vietnam: Data privacy in a communist ASEAN state' (2021) 170 *Privacy Laws & Business International Report*, 1, 5-8

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increasingly being adopted, like *data portability* (Ecuador, Oman, Rwanda, Zambia, UAE, Belarus) and *demonstrable accountability* (Belize, Zimbabwe).

- Administrative penalties based on a percentage of the *previous year's turnover* of a controller do occur (Ecuador, Rwanda, China), but maximum fines based on a dollar amount are also common and are very often *over USD 1M* (Saudi Arabia, Oman).
- Most new laws include *adequacy-like* data export controls based on the extent to which the receiving country's laws approximate their own (Saudi Arabia, UAE, Zimbabwe, Zambia, Sri Lanka, China), as well as allowing other bases such as contractual protections.

Some features which are not 'GDPR-inspired' are also recurring in these new laws:

- Forms of *data localisation* (Rwanda, Zambia, Sri Lanka, China) are no longer rare.
- Rights of *deceased persons* are not uncommon (Saudi Arabia, Rwanda, China).
- *Registration systems* are still created (Saudi Arabia, Rwanda, Zambia), despite being superseded in the EU.

The failure of such a high percentage of laws to create independent DPAs presents problems for those countries (i) obtaining a positive adequacy assessment from the EU, (ii) acceding to Convention 108+, and (iii) in having their DPAs become full members of the Global Privacy Assembly (GPA).

Bills for laws in new countries

There are at least seventeen countries, listed in the following Table, that do not have data privacy laws, but do have official Bills or draft laws at various stages of the political and legislative processes.

Table of Bills (and official draft Bills) for new Acts

Jurisdiction	Title of Bill/Draft	Region
eSwatini (Swaziland)	Data protection Bill 2020	Africa
Ethiopia	Data Protection Bill	Africa
Saint Helena, Ascension & Tristan de Cunha	Data Protection Act	Africa
Tanzania	Data Protection Bill	Africa
Malawi	The Data Protection Bill 2021	Africa
South Sudan	Draft Data Protection Bill 2020	Africa
Bangladesh	Draft Data Protection Bill 2021	Asia
Pakistan	Personal Data Protection Bill	Asia
Brunei	Draft Personal Data Protection Order	Asia
Cuba	Data protection Bill 2022	Caribbean
Guyana	Draft data privacy Bill	Caribbean
El Salvador	Data Protection Law	Latin Am
Guatemala	Ley de Protección de Datos Personales	Latin Am
Suriname	Privacy and Data Protection Bill	Latin Am
Honduras	Draft Law on Protection of Personal Data and Habeas Data	Latin Am.
Iran	Draft Personal Data Protection and Safeguarding Act	Mid-East
Jordan	Draft Law on Data Protection	Mid-East

Conclusions – Ubiquity is still on track

The total of 157 countries with data privacy laws means that two thirds (67%) of the world's 232 independent jurisdictions now have such laws. For the future, there are already substantial numbers of draft Bills in new countries in Africa, Latin America, the Mid-East and Asia – and

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probably more that have not yet been identified. The increase in the total number of countries with data privacy laws is unlikely to stop in the near future, as we move toward a world where data privacy laws – of varying qualities – are ubiquitous.

Information: Valuable information and comments have been received from David Banisar, Tamar Kaldani, and Gimhani Anuththara but responsibility for all content remains with the author.

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